22PR00629 Guardianship of Sage Micah Rain Davis et al

County: santa-barbara

Division: Guardianship

Department: 2 SM-Cook

Hearing date: 2026-07-28

Motion: 3rd Accounting and Report

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Tentative Ruling: Guardianship of Sage Micah Rain Davis et al

Case Number

22PR00629

Case Type

Guardianship

Hearing Date / Time

Tue, 07/28/2026 - 09:00

Nature of Proceedings

3rd Accounting and Report

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court:

Discrepancy no. 1 – Estate on hand at beginning of account ($313,098.09) does not match the amount on hand at the end of the last account filed ($617,480.10). (Prob. Code, §1061(a).) A corrected Second Account and Report was filed on August 21, 2025 , and on the Summary of Account shows a total estate value of $617,480.10. The property on hand here shows $313,098.09, a difference of $304,382.01.

Supplement must be submitted explaining the discrepancy, or the Petition must be amended.

Discrepancy no. 2 – Schedule C “living expenses” category is not segregated into proper categories (i.e. food, clothing, entertainment, gas, medicine, toiletries, etc) then listed in chronological order. (See Fiduciary Accounting Handbook (Cont. Ed. Of the Bar 2022) §8.8 [“As with receipts, disbursements should be listed categorically, then chronologically within each category.”].)

Supplement must be submitted categorizing purchases and subtotaling categories for Disbursements schedule.

Discrepancy no. 3 – Transfers between guardian and ward. The guardian made several cash transfers to the ward, and also paid herself $18,150 over the accounting period via a series of transfers from the ward’s accounts to her own account. According to the Court order filed on January 13, 2025, the guardian was only authorized to pay herself $1,500 per month out of the guardianship account “as an allowance for the care of the minor, Shea Davis.” (Ord. of 1st Accnt., filed Jan. 13, 2025, at p. 2.) These funds were not only to pay the guardian for her services, but were to aid the guardian’s care of the minor.

While the guardian stayed within budget as far as the transfers are concerned, the guardian does not appear to have used solely that money to provide for the ward, because the guardian allowed the ward to spend an additional $17,011.04, a monthly average of $1,417.58, during the same period on “living expenses” that amount to excessive eating out and shopping. This is 3.5 times the amount recommended under the “liberal food plan” by the FDA. (See https://www.fna.usda.gov/research/cnpp/usda-food-plans/cost-food-monthly-reports; [last accessed July 21, 2026].)

Such spending does not appear to be in the best interests of the wards, and is a breach of fiduciary duty by the guardian.

The guardian was warned at multiple hearings that this behavior would result in surcharge. It is recommended the Court surcharge the Guardian at least $17,011.04.

Judges

Judge James F. Rigali

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